

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

CIVIL REVISION NO. 4352 OF 2003

In the matter of:

An application under Section 115(1) of the Code of Civil
Procedure.

AND

In the matter of:

Sree Dependra Mohan Mitra being dead his legal heirs:

1. Purnima Bhattachargee and others

.... Petitioners

-Versus-

Vested and Non President Property-represented by the
Deputy Commissioner, Chapainawabganj and others

....Opposite-parties

None appears

... For the petitioners

Ms. Kamrunnahar Tamanna, Assistant Attorney General

....For the opposite party no. 1

Heard on 04.11.2024 06.11.2024

and Judgment on 06.11.2024

Present:

Mr. Justice Md. Mozibur Rahman Miah

And

Mr. Justice Md. Bashir Ullah

Md. Mozibur Rahman Miah, J:

At the instance of an attorney namely, Md. Abul Kashem for the
heirs of deceased Sree Depondra Mohan Moitra, Purnima Bhatacharjee,
Durjoy Motira and Indrani Moitra who was the plaintiffs in Other Class
Suit No. 28 of 1994, this rule was issued calling upon the opposite-parties
to show cause as to why the judgment and order dated 30.07.2003 passed

by the learned Joint District Judge, 1st Court, Chapai Nawabgonj in that suit rejecting an application filed under Order 1 Rule 10 read with section 151 of the Code of Civil Procedure for addition of party should not be set aside and/or such other or further order or orders be passed as to this court may seem fit and proper.

At the time of issuance of the rule, all further proceedings of the said Suit was stayed.

The short facts leading to issuance of the instant rule are:

The predecessor of the present petitioner Nos. 1-3, Sree Dependra Mohan Mitra originally filed a suit being Other Class Suit No. 28 of 1994 against the present opposite parties made as defendant nos. 1-3 for declaration of Title in the suit land measuring a total area of 13.75 acres of land. In the said suit, defendant nos. 2 and 3 herein the opposite party nos. 2 and 3 filed a joint written statement denying all the material averment so made in the plaint and ultimately prayed for dismissing the suit.

The suit was dismissed for default on 01.06.1999 for which the predecessor of the present petitioners Sree Dependra Mohan Mitra filed an application under Order 9 Rule (9) of the Code of Civil Procedure for setting aside the said order which gave rise to Miscellaneous Case No. 31 of 1999. However, the said Miscellaneous case was also dismissed on 27.04.2002 against which the plaintiff also preferred an appeal before the learned District Judge being Miscellaneous Appeal No. 20 of 2002 and ultimately the same was allowed on 28.06.2002 and the suit was restored to its original file and number and record was then sent back to the trial court for its disposal. However, during the proceedings of the said Miscellaneous

Appeal the sole plaintiff, Sree Dependra Mohan Mitra died 14.02.2003 leaving behind one wife and 2 son. After the demise of said plaintiff one, Md. Abul Kashem claiming to be attorney of the heirs of Sree Dependra Mohan Mitra filed an application under Order 1 Rule 10 read with Order 6 Rule 17 of the Code of Civil Procedure for adding the heirs of the said Sree Dependra Mohan Mitra as parties to the suit. The said application filed by the attorney for the heirs of the deceased Sree Dependra Mohan Mitra was ultimately taken up for hearing by the learned Joint District Judge, 1st court, Chapai Nawabgonj and after hearing the petitioners and those of the defendant-opposite party, the learned judge vide impugned judgment and order dated 30.07.2003 rejected the application holding that, there has been no scope to substitute the heirs of deceased after the suit is abated holding further that, since the deceased died on 14.02.2003 so within 90 days of that death, the heirs of deceased should have filed an application for substitution that is by 14.05.2003. But without doing so the attorney for the heirs filed the application for addition of party on 30.07.2003 when the time for substituting the heirs got expired and the suit has abated. It is at that stage, the said attorney representing the heirs of Sree Dependra Mohan Mitra, filed their revisional application and obtained instant rule and order of stay.

None appeared for the petitioners to press the rule though the matter has been appearing with the name of the learned counsel for the petitioners.

On the contrary, Ms. Kamrunnahar Tamanna, the learned Assistant Attorney General appearing for the opposite party no. 1 by substantiating the impugned judgment and order submits that, there

has been no illegality ever committed by the learned judge while passing the impugned order rejecting the application for addition of party. The learned counsel by referring to the decision relied upon by the petitioners before the trial court also submits that, those three decision have been discussed by the learned judge while rejecting the application for addition of party finding those not be applicable in the facts and circumstances of the instant case for addition of party and she finally prays for discharging the rule.

We have considered the submission so advanced by the learned Assistant Attorney General and perused the revisional application and that of the document so appended therein the revisional application. There has been no gainsaying the fact that Sree Dependra Mohan Mitra died leaving behind 1 wife and 2 sons and both of the sons are sui juris and possess a sound mind because there has been no adverse averment with regard to their capacity while the matter was taken up for hearing by the learned judge. But why they were being represented by an attorney in filing an application for addition of party is totally incomprehensible to us. Because, on going through the impugned order, we find that earlier the suit was dismissed for default when at the instance of the sole plaintiff the said suit was restored to its file and number in Miscellaneous appeal. So, after the demise of the lone plaintiff it was incumbent upon the heirs of the said deceased, Sree Dependra Mohan Mitra to file an application for substitution within 90 days from the date of death of the said deceased. But without doing so they (the heirs) got the application filed under order 1 Rule 10 of the Code of Civil Procedure through an attorney which is totally

untenable. In filing an application either for substitution or for addition of party the heirs of a deceased are only eligible person not an attorney. Furthermore, on observing the decision so have been cited at the instance of the petitioners, we also find that, the learned judge has rightly found that, there has been no reason to pass a formal order after expiry of 90 days of the death on a deceased as upon expiry of 90 days, the suit itself will rendered abated regardless of a suit is abated, still a court can show a lenient view by substituting the heirs of a deceased if cogent reasons are offered for condoning delay in the application for substitution. But the case is otherwise here which sounds unusual and the trial court rightly addressed so vide impugned order.

Given the above facts and circumstances we are of the view that, the learned judge of the trial court has committed no illegality while passing the impugned order by rejecting the application for addition of party.

Accordingly, the rule is discharged however without any order as to costs.

The order of stay grated at the time of issuance of the rule stands recalled and vacated.

Let a copy of this order be communicated to the court concerned forthwith.

Md. Bashir Ullah, J:

I agree.